



CPE14 – Basic Occupational Safety and Health

OSH Legislation

Introduction:

This topic aims to familiarize you about the various government regulations regarding OSH and other responses to existing and potential OSH hazards.

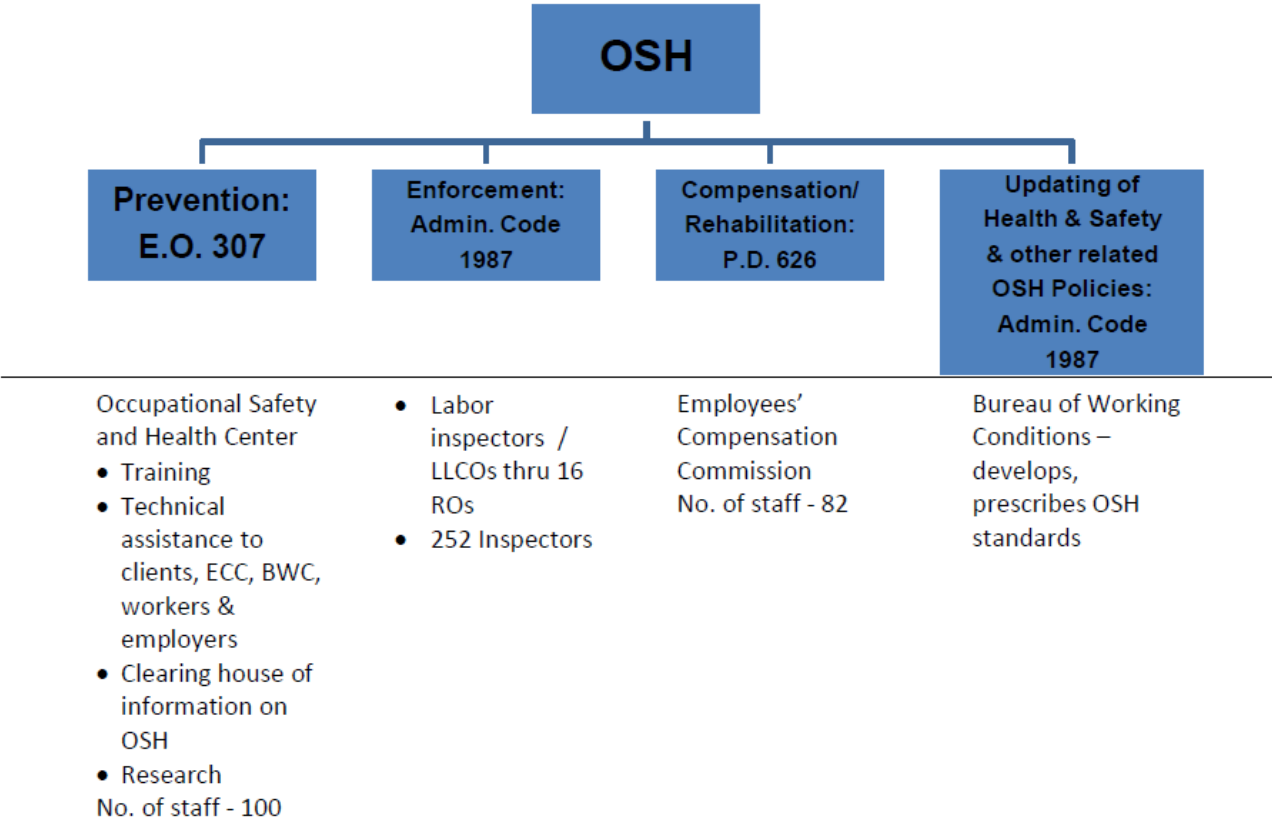
OSH legislation and enforcement are key components of the government program to protect workers from work accidents and illnesses; and

Legislation and enforcement are not the only approaches used in improving OSH in the Philippines. We have developmental strategies like the Zero Accident Program (ZAP), information drives and the like in order to put a positive note in OSH administration. In cases of work disabilities, there is also the Employees Compensation Program (ECP).

Objectives

- Identify laws and policies which govern OSH administration in the Philippines;
- Determine government agencies which administer such laws;
- Explain the various strategies for OSH administration

OSH Administration Framework in the Philippines



Policy Framework

The focus of our discussion will be on those laws which are specifically administered by the Department of Labor and Employment (DOLE) under the Labor Code of the Philippines (LCP).

1. Labor Code of the Philippines

□ **Article 162 – Safety and health standards.** The Secretary of Labor and Employment shall, by appropriate orders, set and enforce mandatory occupational safety and health standards to eliminate or reduce occupational safety and health hazards in all workplaces and institute new, and update existing, programs to ensure safe and healthful working conditions in all places of employment.

□ **Article 164 – Training programs.** The DOLE shall develop and implement training programs to increase the number and competence of personnel in the field of occupational safety and industrial health.

Article 164 – Administration of safety and health laws.

a. The DOLE shall be solely responsible for the administration and enforcement of occupational safety and health laws, regulations and standards in all establishments and workplaces wherever they may be located; however, chartered cities may be allowed to conduct industrial safety inspections of establishments within their respective jurisdictions where they have adequate facilities and competent personnel for the purpose as determined by the DOLE and subject to national standards established by the latter.

b. The Secretary of DOLE may, through appropriate regulations, collect reasonable fees for the inspection of steam boilers, pressure vessels and pipings and electrical installations, the test and approval for safe use of materials, equipment and other safety devices and the approval of plans for such materials, equipment and devices. The fee so collected shall be deposited in the national treasury to the credit of the occupational safety and health fund and shall be expended exclusively for the administration and enforcement of safety and other labor laws administered by the DOLE.

Article 128 Visitorial and Enforcement Power.

a. The Secretary of Labor and Employment or his duly authorized representatives, including labor regulation officers, shall have access to employer's records and premises at any time of the day or night whenever work is being undertaken therein, and the right to copy there from, to question any employee and investigate any fact, condition or matter which may be necessary to determine violations or which may aid in the enforcement of this Code and of any labor law, wage order or rules and regulations issued pursuant thereto.

b. Notwithstanding the provisions of Articles 129 and 217 of this Code to the contrary, and in cases where the relationship of employer-employee still exists, the Secretary of DOLE or his duly authorized representatives shall have the power to issue compliance orders to give effect to the labor standards provisions of this Code and other labor legislation based on the findings of labor employment and enforcement officers or industrial safety engineers made in the course of inspection. The Secretary or his duly authorized representatives shall issue writs of execution to the appropriate authority for the enforcement of their orders, except in cases where the employer contests the findings of the labor employment and enforcement officer and raises issues supported by documentary proofs which were not considered in the course of inspection. (As amended by Republic Act No. 7730, June 2, 1994).

An order issued by the duly authorized representative of the Secretary of Labor and Employment under this Article may be appealed to the latter. In case said order involves a monetary award, an appeal by the employer may be perfected only upon the posting of a cash or surety bond issued by a reputable bonding company duly accredited by the Secretary of Labor and Employment in the amount equivalent to the monetary award in the order appealed from. (As amended by Republic Act No. 7730, June 2, 1994).

c. The Secretary of Labor and Employment may likewise order stoppage of work or suspension of operations of any unit or department of an establishment when non-compliance with the law or implementing rules and regulations poses grave and imminent danger to the health and safety of workers in the workplace. Within twenty-four hours, a hearing shall be conducted to determine whether an order for the stoppage of work or suspension of operations shall be lifted or not. In case the violation is attributable to the fault of the employer, he shall pay the employees concerned their salaries or wages during the period of such stoppage of work or suspension of operation.

d. It shall be unlawful for any person or entity to obstruct, impede, delay or otherwise render ineffective the orders of the Secretary of DOLE or his duly authorized representatives issued pursuant to the authority granted under this Article, and no inferior court or entity shall issue temporary or permanent injunction or restraining order or otherwise assume jurisdiction over any case involving the enforcement orders issued in accordance with this Article.

e. Any government employee found guilty of violation of, or abuse of authority, under this Article shall, after appropriate administrative investigation, be subject to summary dismissal from the service.

f. The Secretary of DOLE may, by appropriate regulations, require employers to keep and maintain such employment records as may be necessary in aid of his visitorial and enforcement powers under this Code.

2. Presidential Decree 626

You may click this link - <http://www.ecc.gov.ph/pd626.htm>

3. Presidential Decree 856 – Code on Sanitation

You may click this link - <http://www.chanrobles.com/presidentialdecreeno856.htm>

4. Republic Act 8504 – An act promulgating policies and prescribing measures for the prevention and control of HIV/AIDS in the Philippines, instituting a nationwide HIV/AIDS information and educational program, establishing a comprehensive HIV/AIDS monitoring system, strengthening the Philippine National Aids Council, and for other purposes.
You may click this link - <http://www.chanrobles.com/presidentialdecreeno856.htm>

5. Republic Act 9165 - An act instituting the Comprehensive Dangerous Drugs Act of 2002 repealing Republic Act No 6425, otherwise known as the Dangerous Drugs Act of 1972, as amended, providing funds therefore, and for other purposes.

You may click this link - http://www.lawphil.net/statutes/repacts/ra2002/ra_9165_2002.html

6. Republic Act 6969 - An act to control toxic substances and hazardous and nuclear wastes, providing penalties for violations thereof, and for other purposes.

You may click this link - <http://www.pctc.gov.ph/initiatv/RepAct6969.htm>

7. Local Government Act - decentralizes some national government functions to LGUs. Ex. Inspection of buildings, health care provisions, etc.

8. Executive Order 307 – An Executive Order issued during President Corazon C. Aquino's term, establishing the Occupational Safety and Health Center in the Employees' Compensation Commission" attached agency of the Department of Labor and Employment as the national focal point on OSH trainings, researches, information and technical services.

For further readings, you may click this link - <http://www.oshc.dole.gov.ph/121/>

The Occupational Safety and Health Standards (OSHS)

OSHS is actually a codification of all safety and health rules and regulations, including safety orders then in existence at the time.

OSHS has many provisions. To some extent, many of its provisions have already been discussed in the technical discussions that have been undertaken in the previous modules.

Selected OSHS Provisions

What will be discussed instead are the significant and major provisions. These are significant in the sense that these are the most often-asked questions and which relates to items that will seriously affect the operations of the company. These are:

Rule 1001 - Purpose and Scope

1. The objective of this issuance is to protect every workingman against the dangers of injury, sickness or death through safe and healthful working conditions, thereby assuring the conservation of valuable manpower resources and the prevention of loss or damage to lives and properties, consistent with national development goals and with the State's commitment for the total development of every worker as a complete human being.

2. This standards shall apply to all places of employment except as otherwise provided in this Standards.

Rule 1005 - Duties of Employers, Workers and other Persons

1. Each employer covered by the provisions of this Standards shall:

a. Furnish his workers a place of employment free from hazardous conditions that are causing or are likely to cause death, illness or physical harm to his workers.

b. Give complete job safety instructions to all his workers, especially to those entering the job for the first time, including those relating to the familiarization with their work environment, hazards to which the workers are exposed to and steps taken in case of emergency;

c. Comply with the requirements of this Standards; and

d. Use only approved devices and equipment in his workplace.

2. Every worker shall cooperate with the employer in carrying out the provisions of this Standards. He shall report to his supervisor any work hazard that may be discovered in his workplace.

3. Every worker shall make proper use of all safeguards and safety devices furnish in accordance with the provisions of this Standards for his protection and that of others, and shall follow all instructions given by the employer in compliance with the provision of this Standards.

4. It shall be the duty of any person, including any builder or contractor or enforcement agent, who visits, builds, renovates, or installs devices, or conducts business in any establishment or workplace, to comply with the provisions of this Standards and all regulations of the employer issued thereunder as well as with other subsequent issuances of the Secretary.

Rule 1012.02 – Abatement of Imminent Danger

1. An imminent danger is a condition or practice that could reasonably be expected to cause death or serious physical harm before abatement under the enforcement procedure can be accomplished.
2. When an enforcement officer finds that an imminent danger exists in a workplace, he shall inform the affected employer and workers of the danger and shall recommend to the Regional Director the issuance of an Order for stoppage of operation or other appropriate action for the abatement of the danger. Pending the issuance of the Order the employer shall take appropriate measures to protect the workers.
3. Upon receipt of such recommendation, the Regional Director shall immediately determine whether the danger exists and is of such a nature as to warrant the issuance of a Stoppage Order or other appropriate action to minimize the danger.
4. The Order shall require specific measures that are necessary to avoid, correct or remove such imminent danger and to prohibit the presence of any worker in such location where such danger exists, except those whose presence are necessary to avoid, correct or remove such danger or to maintain a continuous process or operation. Where stoppage of operation is ordered, the Order shall allow such correction, removal or avoidance of danger only where the same can be accomplished in a safe and orderly manner.
5. Immediately after the issuance of Stoppage Order, the Regional Director shall furnish the Secretary, through the Director, within forty-eight (48) hours a copy of the Order and all pertinent papers relating thereto, together with a detailed description of the work conditions sought to be corrected, the safety and health rule violated by the employer and the corrective measures imposed. The Secretary shall review the Order issued by the Regional Director and within a period of not more than five (5) working days, issue a final Order either lifting or sustaining the Order of the Regional Director.
6. The Order shall remain in effect until danger is removed or corrected.

Rule 1013 - Hazardous Workplaces

For purposes of this Standards, the following are considered “hazardous workplaces:”

- a. Where the nature of work exposes the workers to dangerous environmental elements, contaminants or work conditions including ionizing radiation, chemicals, fire, flammable substances, noxious components and the like;
- b. Where the workers are engaged in construction work, logging, fire-fighting, mining, quarrying, blasting, stevedoring, dock work, deep sea fishing, and mechanized farming;
- c. Where the workers are engaged in the manufacture or handling of explosives and other pyrotechnic products;
- d. Where the workers use or are exposed to power driven or explosive powder actuated tools;
- e. Where the workers are exposed to biologic agents like bacteria, fungi, viruses, protozoas, nematodes, and other parasites.

Rule 1043.01 - Health and Safety Committee

The Health and Safety Committee is the planning and policy making group in all matters pertaining to safety and health. The principal duties of the Health and Safety Committee are:

- 1.Plans and develops accident prevention programs for the establishment.
- 2.Directs the accident prevention efforts of the establishment in accordance with the safety programs, safety performance and government regulations in order to prevent accidents from occurring in the workplace.
- 3.Conducts safety meetings at least once a month.
- 4.Reviews reports of inspections, accident investigations, and implementation of programs.
- 5.Submits reports to the manager on its meetings and activities.
- 6.Provides necessary assistance to government inspecting authorities in the proper conduct of their activities such as the enforcement of the provisions of this Standards.
- 7.Initiates and supervises safety training for employees.
- 8.Develops and maintains a disaster contingency plan and organizes such emergency service units as may be necessary to handle disaster situations pursuant to the emergency preparedness manual for establishments of the Office of Civil Defense.

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Rule 1050 – Notification and Keeping of Records of Accidents and/or Occupational Illnesses

1053 Report Requirements

1053.01:

1. **All work accidents or occupational illnesses in places of employment**, resulting in disabling condition or dangerous occurrence as defined in 1053.02 **shall be reported by the employer to the Regional Labor Office** or duly authorized representative in duplicate and a copy furnished the employee or his duly authorized representative using form DOLE/BWC/HSD-IP-6. **The formal report shall be submitted by the employer on or before the 20th day of the month** following the date of occurrence of the accident or when the illness is established and an investigation report in the prescribed form shall be submitted by the Regional Office or duly authorized representative on or before the 30th day of the same month. In case of temporary total disability where the injured or ill employee has not reported back to duty on the closing date of reporting, an estimate of the probable days of disability shall be made and entered in the report and corrected after the return of the injured, the corrected days of absence shall be used.

2. Where the accident or illness results in death or permanent total disability, the employer, in addition to the written report required under sub-paragraph (1) above, shall initially notify the Regional Labor Office or duly authorized representative within twenty four (24) hours after occurrence using the fastest available means of communication.

3. All deaths and permanent total disabilities shall be investigated by the Regional Office or duly authorized representative within forty eight (48) hours after receipt of the initial report of the employer, prepared in duplicate using the prescribed form DOLE/BWC/OHSD-IP-6a.

Reporting Forms

In summary, the following are the reporting requirements of the OSHS, which you can download at this link: <http://www.bwc.dole.gov.ph/Downloads/ViewDetails.aspx?id=1>

- ☐ registration of establishments-IP-3
- ☐ report of safety and health organization- IP-5
- ☐ employer's work accident/illness report-IP-6
- ☐ annual work accident/illness exposure data report-IP-6B; and
- ☐ annual medical report form 47-A.

Rule 1070 – Occupational Health and Environmental Control

It is the basis for the conduct of work environment measurements (WEM) by the OSHC. It provides for certain values on the permissible level exposures of many contaminants and other physical hazards.

You may read the whole content of Rule 1070 at the Occupational Safety and Health Standards.

For additional information, you can download DOLE Memorandum Circular #1, series of 2000 entitled Implementing Guidelines for the Conduct of Workplace Environment Assessment (WEA) in Hazardous Establishments and Work Processes (see Appendix Number)

Rule 1080 - Personal Protective Equipment

1081 – General Provision

1081.01: Every employer as defined in 1002:

1. **Shall at his own expense furnish his workers with protective equipment** for the eyes, face, hands and feet, protective shields and barriers whenever necessary by reason of the hazardous nature of the process or environment, chemical or radiological or other mechanical irritants or hazards capable of causing injury or impairment in the function of any part of the body through absorption, inhalation or physical contact.
2. Deduction for the loss or damage of personal protective equipment shall be governed by Article 114, Book III, Labor Code of the Philippines, and Section 14, Rule VIII, Book III, Omnibus Rules Implementing the Labor Code.

1081.02: **All personal protective equipment shall be of the approved design** and construction appropriate for the exposure and the work to be performed.

1081.03: The employer shall be responsible for the adequacy and proper maintenance of personal protective equipment used in his workplace.

1081.04: No person shall be subjected or exposed to a hazardous environmental condition without protection.

Rule 1980 - Authority of Local Government

1981.01: Types of Inspection:

For the purpose of this Standards, inspection activities shall be divided into Technical Safety Inspection and General Safety Inspection.

1. **Technical Safety Inspection** – shall refer to inspection for the purpose of safety determination of boilers, pressure vessels, internal combustion engines, electrical installations, elevators, hoisting equipment and other mechanical equipment.

2. **General Safety Inspection** – shall refer to inspection of the work environment, including the location and operation of machinery other than those covered by technical safety inspections, adequacy of work space, ventilation, lighting, conditions of work environment, handling, storage or work procedures, protection facilities and other safety and health hazards in workplace.

Rule 1990 – Final Provisions

1995: Penal Provisions

All violations of the provisions of this Standards shall be subject to the applicable penalties provided for in the Labor Code, PD 442 as amended.

Please read the links on <http://www.chanrobles.com/legal4labor4.htm>

Government responses aside from enforcement

With regards to government legislation as a whole, instructor reminds participants that enforcement is only one response but not the only response of the government. Such approaches include:

- Zero Accident Program (ZAP)
- Employees' Compensation Program (ECP)
- Work Improvement in Small Enterprises (WISE)
- Program on OSH in the Informal sector
- OSH in Schools
- Child Labor
- Quick Reaction Teams like Work ALERT, medical surveillance on SJS, and many others.

For the DOLE as a whole, voluntary compliance is still the best, where organizations implement OSH measures because they know that it will be to their great benefit. The OSHC flagship program of ZAP is an example of such program which emphasizes the spirit of voluntarism. Another key DOLE program is the Employees Compensation Program (ECP), the preventive aspect of which is implemented by OSHC.

ACTIVITY

Answer the following questions.

1. What are the components of OSH Administration Frame Work in the Philippines. Explain each
2. Enumerate the Policy of Framework.
3. What is RA 8504.
4. What is RA 6969.
5. What is the purpose and scope of OSHS provision?
6. What is imminent danger?
7. Explain Rule 1050 and how is it done.
8. What is the content of Rule 1080.
9. Why should companies comply with the OSHS?
10. What are some OSHA standards?

Reference:

Department of Labor and Employment
OCCUPATIONAL SAFETY AND HEALTH CENTER